BRIEF FOR APPELLEES

United States Court of Appeals

FOR THE DISTRICT OF COLUMBIA CIRCUIT

No. 15,487

WILLIAM P. ROGERS,
Attorney General of the United States,

Appellant,

v.

CHENG FU SHENG AND LIN FU MEI,

Appellees.

APPEAL FROM THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLUMBIA

United States Court of Appeals
For the
District of Columbia Circuit

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QUESTIONS PRESENTED

1. Whether a warrant of deportation may be executed to deport an alien to "Formosa" where the statute [8 U.S.C. 1253(a)] expressly provides that deportation be effected to a "country".

2. Whether the judiciary may determine that Formosa is part of the territory of the Republic of China, and, therefore, within that country for the purpose of the deportation provisions of the Immigration and Nationality Act, in the face of a determination of the Executive that sovereignty over Formosa has never been transferred to China.

3. Whether Formosa may be regarded as a country for purposes of the deportation provisions of the Immigration and Nationality Act.

4. Whether appellees may be deported to a place other than a country.

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APPEAL FROM THE UNITED STATES DISTRICT COURT
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BRIEF FOR APPELLEES

COUNTERSTATEMENT OF THE CASE

The appellees are natives and citizens of China, who entered the United States in 1952 to receive military training with the United States Air Force. They completed their studies but failed to depart from this country. Deportation proceedings were thereupon brought against them by the Immigration and Naturalization Service of the Department of Justice, and eventuated in warrants directing the deportation of the plaintiffs "pursuant to law". It has been stipulated that the Government intends to execute the warrants by deporting them to Formosa. The appellees

thereupon instituted the action below against the Attorney General for a declaratory judgment adjudicating that their deportation to Formosa would be contrary to law. (J.A. 21-24) Appellees contended that they could not be deported to Formosa for the reason that Formosa is not a "country" to which they may be deported within the meaning of the term "country" used in Section 243(a) of the Immigration and Nationality Act, 66 Stat. 212, 8 U.S.C. §1253(a) (1952) (J.A. 21-23). Cross motions for summary judgment were filed (J.A. 24, 25), and the parties stipulated further that in the 1952 Japanese Peace Treaty, Japan renounced all interest in Formosa, and that no subsequent agreement thereafter entered into purported to transfer the sovereignty of Formosa to China (J.A. 26).

The District Court granted summary judgment for appellees. The Court held that:

> "The places to which an alien may be deported are expressly and specifically defined by statute . . . (and that) . . . in each instance the place to which deportation may be ordered is a country and not a particular location . . . " (J.A. 28-29).

The Court stated further, however, that inasmuch as the appellees are natives and citizens of China, "they may lawfully be deported to Formosa" if "Formosa is a part of China".

As to this issue, the Court, after reviewing communications and material from the Department of State, ruled that:

> "Since Formosa is not regarded by the Department of State as part of China as a country" the plaintiffs (appellees) may not be deported to Formosa". (J.A. 33).

The question whether a particular nation has sovereignty over a specified area, the Court declared, is a political matter, as to which the Court is "bound by the official attitude of the Department of State" (J.A. 29, 30, 33).

An order was entered on October 13, 1959, granting appellees' motion for summary judgment. This appeal was noted by appellant on November 16, 1959.

SUMMARY OF ARGUMENT

The Immigration and Nationality Act provides in the section relevant here (8 U.S.C. 1253(a)) for the deportation of an alien to any "country of which such alien is a subject (,) national, or citizen . . ." Two questions are in issue: Whether the term country in that Act encompasses Formosa in view of the history, geography and present status of that island, and (2) If Formosa is not a country, whether that term as used in the statute means a geographical area that is not a country.

Appellees submit that Formosa cannot be held by the Courts to be a country. The State Department, whose determinations in these matters are conclusive (Jones v. United States 137 U.S. 202, 212) has declared that although China ceded Formosa to Japan in 1895 under the Treaty of Shimonoseki, Japan, in Article 2 of the Japanese Peace Treaty of April 28, 1952, merely renounced all 'right, title and claim' to Formosa. "Neither this agreement nor any other agreement thereafter," the State Department has stated, "has purported to transfer the sovereignty of Formosa to China." 39 State Department Bulletin No. 1017, pp. 1005, 1009.

Sovereignty, as the appellant concedes, (p. 13) is the touchstone of all international law. It is therefore the touchstone for determining whether Formosa may be regarded as part of the territory, i.e., country, of China. Clearly, it is not.

Appellant seeks to escape his impalement by the State Department's carefully formulated position by urging a construction of the term country broad enough to include an island which has never had an independent

existence, which even now is no more than a de facto political and territorial subdivision of a foreign country, and which is being occupied and administered by the government of that foreign country without cession of sovereignty over it. An examination of the present and the prior statutes, apart from the question whether a court may substitute its judgment for that of the State Department, demonstrates that this escape is not available to appellant. The very section which contains the statutory language involved here shows that Congress has employed a variety of terms to denominate geographical and political areas: "foreign contiguous territory", "islands adjacent to the United States" (8 U.S.C. 1253(a)), "political or territorial subdivision of a foreign country" (8 U.S.C. 1253(b)(2)), and "port of deportation" (8 U.S.C. 1253(c)). In addition, the statute employs a storehouse of other words and phrases in other sections. The use by the Congress of specific words to say what it means precludes a usage of the term country to supply a meaning available from other statutory words. (United States v. Atchison T. & S.F.R. Co., 220 U.S. 37).

Moreover, the prior statute, (8 U.S.C. 156) permitted the deportation of aliens to the foreign port from which they embarked to the United States, in addition to the "country whence they came." As the court below declared "to adopt the construction urged by the Government would in effect reinsert that phrase (foreign port) back in the statute — something that the Congress has not done so far and that the Court may not do". (J.A. 34).

The position of the Court below is underscored by the fact that Congress has chosen in express words to permit deportations to political and territorial subdivisions, which Formosa could be at most, but has limited such deportations to a time of war. (8 U.S.C. 1253(b))

In any event, the rule of statutory construction applicable to deportation laws requires the "narrowest of several possible meanings". Fong Haw Tan v. Phelan, 333 U.S. 6, 10.

ARGUMENT

I

FORMOSA IS NOT A COUNTRY WITHIN THE MEANING OF SECTION 243(a) OF THE IMMIGRATION AND NATIONALITY ACT. (8 U.S.C. 1253(a))

To say, as appellant does, that Formosa is a country within the meaning of the Immigration and Nationality Act is to ignore geography, history, international law, as well as the comparative provisions in the Act itself.

Formosa is an island in the South China Sea which has never, at least in modern history, had an independent existence as a country. It became a part of the Chinese Empire in 1682 (Encyclopaedia Britannica, 11th edition, vol. 10, pp. 670, 671), and remained a possession of China until 1895, when, by the Treaty of Shimonoseki, it was ceded to Japan. Since the end of hostilities at the close of World War II in September 1945, the island has been occupied by the Republic of China. Thereafter, Japan renounced all 'right, title, and claim' to Formosa by its adherence to the Japanese Peace Treaty which became effective April 28, 1952. However, neither this agreement nor any other agreement thereafter, the State Department has stated, has purported to transfer the sovereignty of Formosa to China. 39 Department of State Bulletin No. 1017, December 22, 1958, at pp. 1005 and 1009. As the Court below indicated (J.A. 33),

> ". . . the official attitude of the Department of State . . . apparently has been studied very carefully and expressed in guarded phraseology. It is even conceivable that for the court then to regard Formosa as part of China for any purpose and thus go beyond the expressions of the Department of State might cause embarrassment or complications insofar as that Department is concerned."

A. The Determinations Of The Executive As To Boundaries And The Sovereignty Of Foreign Countries Are Political Matters Which Are Binding Upon The Courts.

In effect, appellant seeks a redetermination by this Court of the State Department's policy. Appellees believe that this avenue of inquiry is not open to the Court. The reasons which have impelled the judiciary not to review decisions of the Executive relating to foreign policy require the Court to reject any attempt to go behind the determination of the State Department that Formosa has not been ceded, or its sovereignty transferred, to China. If the Court is permitted to decide that the occupation and the administration of an area by a government makes that area the "territory of the country of that government", then the court would be exercising a function of foreign policy, "which has long been held not subject to judicial intrusion or inquiry". Chicago and Southern Airlines, Inc. v. Waterman Steamship Corp. 333 U.S. 103, 111; Jones v. United States, 137 U.S. 202, 213.

There is no analogy here, as appellant suggests (at p. 13) with the status of the Federal Republic of Germany. The question is not whether a "final peace treaty" has been written, but rather what the existing treaties and international agreements provide. What is analogous is the question whether the judiciary could determine, in conflict with the position of the State Department, the status of various territorial transfers affecting the Federal Republic of Germany.

If this Court were empowered to enquire whether Formosa is occupied and administered by the Republic of China, and upon an appropriate finding, to rule that Formosa is the territory of the Republic of China, then the same principle could apply to the less palatable question whether Danzig and what was East Prussia, occupied and administered by Poland, are now the sovereign territory of Poland, and whether what were the Eastern Provinces of Poland, now occupied and administered by the Soviet Union, are Soviet territory. It seems scarcely necessary

to suggest that a ruling by this Court that these areas are territories of Poland and of the Soviet Union would be an encroachment upon the powers of the Executive and would indeed embarrass our international policy. The determination of the Executive that Formosa has not been ceded and that its sovereignty has not been transferred to China, appellees believe, forecloses all further inquiry upon the subject.

B. The Republic Of China Has Not Acquired Sovereignty Over Formosa; Hence Formosa Is Not Part Of The Territory Of That Country.

Appellant, nonetheless, urges that this Court determine that Formosa is a "country". He argues (at pp. 10-11) that the United States recognizes the "Government on Formosa" as the legitimate government of China, that it is the political power to which the appellees owe allegiance, that it "has de facto sovereignty or control over the island of Formosa", and (at p. 13) that the "government of Formosa" (sic) is sovereign over its territory. Most of these arguments, appellees believe, must be discarded by the appellant for, he concedes, that sovereignty is the determinative issue. Quoting Morris, Dicey's Conflict of Laws, (7th ed.) (1958) he states (at p. 13) that "'Country means the whole of a territory subject under one sovereignty to one body of law' and that . . . sovereignty is the touchstone of all international law".

Corollary to this argument, appellant says (at p. 13) that it is "indisputable that the government of Formosa is sovereign over its territory". (Emphasis supplied). Appellant presumably means the Republic of China, there being no suggestion of another government. His statement is not supported either by the position of the State Department set forth in 39 Department of State Bulletin No. 1017, pp. 1005, 1009 (quoted at J.A. 31-32), or by other authorities.

All that can be said is that the United States has recognized that "The Republic of China effectively controls" Formosa (Letter of former Secretary of State, John Foster Dulles, to Minister of Foreign Affairs of Republic of China, George K. C. Yeh, dated December 10, 1954, Documents on American Foreign Relations, 1954, Council on Foreign Relations) and that it has agreed to defend that territory against aggression without its conduct being "construed as affecting or modifying the legal status of sovereignty of" Formosa. See Article 2, Chapter II, Japanese Peace Treaty, April 28, 1952; Treaties and Other International Acts Series 2490; Articles II, V and VI, Mutual Defense Treaty between the United States and the Republic of China; Senate Executive Report No. 2, 84th Cong., 1st Sess., February 8, 1955.

This, of course, is not sufficient to give the Republic of China sovereignty over Formosa. See Moore's Digest of International Law, Vol. 1, p. 290, 1906 ed., citing American Insurance Co. v. Canter (356 Bales of Cotton) 1 Pet (26 U.S.) 511, 542, as follows:

> "The holding of a conquered territory is regarded as a mere military occupation until its fates shall be determined at the treaty of peace. If it be ceded by the treaty, the acquisition is confirmed, and the ceded territory becomes a part of the nation to which it is annexed, either on the terms stipulated in the treaty of cession, or on such as its new master shall impose."

See also, International Law, Charles C. Hyde, Vol. 1, pp. 173-176 and Oppenheim's International Law, edited by Lauterpracht, 8th ed. Vol. 1, at page 545:

> "Nowadays, however, the acquisition of territory by a state can mean nothing else than the acquisition of sovereignty over such territory."

Burnet v. Chicago Portrait Co., 285 U.S. 1, 5, upon which appellant relies (at p. 11) is not to the contrary. The Supreme Court there stated that the term country may be taken:

"to mean foreign territory or a foreign government. In the sense of territory, it may embrace all the territory subject to a foreign sovereign power."

If the concept of the word 'country' is to be territorial, therefore, the determinative issue is whether a country has sovereignty over the territory in question. For the reasons we have given, appellees believe that the island of Formosa cannot be regarded as territorially subject to the sovereignty of the Republic of China.

Appellant has avoided an express reliance upon the governmental concept of the term "country", and properly so. His argument, nevertheless, embraces certain aspects of the governmental approach, viz., the political allegiance of the appellees and the de facto control by the Republic of China over Formosa (pp. 10-11).

The governmental usage of the term 'country' has no applicability here. Even were the Taiwan Provincial Government, the political body which governs the island of Formosa (See The Statesman's Year Book (1959), p. 886, 897) to be regarded for certain purposes and in particular statutes as a foreign government within the meaning of the word 'country', the government involved here is the "Republic of China". It is that government, the appellant stipulated below (J.A. 26) which "agreed to accept plaintiffs (appellees)".

Moreover, the statute implies the territorial, rather than the governmental concept because throughout 8 U.S.C. 1253 (a) and (b) it requires the country be "willing to accept (a deported alien) into its territory", and if, during war and a "recognized government is in exile", that the "country in which is located that government in exile" must permit the alien "to enter its territory". (Emphasis supplied).

Upon the basis of history, geography, and international law, therefore, appellees believe that the Court below is correct in ruling that Formosa is not the territory of the Republic of China.

C. The Legislative Background Of The Statute And The Language Of The 1952 Act Indicate That The Term "Country" Does Not Include The Island Of Formosa.

An examination of the legislative history and of the language used by Congress in the present Immigration and Nationality Act demonstrates the error of the appellant's contention that the term "country" should be read so broadly that it encompasses an island, which has never had an independent existence and which is occupied by a foreign power. The words of the statute, and of the prior immigration laws, establish that the Congress has chosen precise terms to distinguish between "countries" and other geographical and political entities.

Under the 1917 Immigration Act (8 U.S.C. 156) prior to amendment by the Internal Security Act of 1950, deportation of aliens was authorized to:

> "the country whence they came or to the foreign port at which such aliens embarked for the United States: or, if such embarkation was for foreign contiguous territory, to the foreign port at which they embarked for such territory." (Emphasis supplied)

Under this section, there is no requirement that appellees be deported to a country. Appellees could therefore have been deported under its provisions to the foreign port from which they embarked for the United States, regardless of its political or geographical status. Triant v. Nicolls, 50 F. Supp. 915 (D.C. Mass., 1943). Presumably, this would be Taipei, Formosa. The only other circumstance under which Formosa could be a proper place of deportation, as we note below, is if the United States were at war.

Under the Internal Security Act (64 Stat. 1010, 8 U.S.C. 156) and under the 1952 Immigration and Nationality Act (8 U.S.C. 1253), deportation may no longer be effectuated to the port of an alien's embarkation. Under the 1952 Act, except when the United States is at war, deportation must be effectuated to a designated country. (8 U.S.C. 1253(a)).

However, when the United States is at war, deportation may be effectuated to:

(a) The country wherein the alien's government is in exile, or

(b) If the alien's government is not in exile, to "a country or any political or territorial subdivision thereof which is proximate to the country of which the alien is a citizen or subject." (8 U.S.C. 1253(b)). (Emphasis supplied)

Throughout the 1952 Immigration and Nationality Act various terms are used to designate foreign shores.

In 8 U.S.C. 1253 itself differentiating words are employed. The term country is used more than twenty times, but, in addition, Congress denoted other political and geographical areas, by such terms as "foreign contiguous territory", "islands adjacent to the United States" (8 U.S.C. 1253(a)), "political or territorial subdivision: of a foreign country (8 U.S.C. 1253(b)(2)), and "port of deportation" (8 U.S.C. 1253(c)).

Elsewhere in the 1952 Act, these as well as various other denotative terms are used. The phrase "foreign contiguous territory" is used at 8 U.S.C. 1101(a)(6) in connection with the definition of "border crossing identification card" and at 8 U.S.C. 1182(a) (16), (17) and (24) to determine the excludability of aliens upon various grounds. See also 8 U.S.C. 1181 (c), 1221 (a) (c), 1228 (a) (b) (c) and (e), 1251 (a)(10), 1254 (a)(5), 1323 (a), 1326 (a)(2).

"Foreign port or place" is the term used in the definition of the word "entry". 8 U.S.C. 1101(a)(13). "Port outside thereof" (the United States appears at 8 U.S.C. 1285).

At 8 U.S.C. 1101(a)(14), the statute defines "foreign state" to include "outlying possessions of a foreign state, but self-governing dominions or territories under mandate or trusteeship shall be regarded as separate foreign states". The term "foreign state" is used at various

sections of the statute. See 8 U.S.C. 1101 (a) (15) (e); 1481 et seq. to 1487, 1499, 1500.

The phrase "foreign government recognized de jure by the United States" is used at 8 U.S.C. 1101 (a) (15) (g).

"Foreign country" is another term used recurrently in the Act. See 8 U.S.C. 1101 (a) (15) (f), (h); 1103(a); 1152(a) (3), 1201(c), 1221(a), 1228(d), 1351, 1353, 1406(a) (2) (3), 1451(d).

The specific term "independent country of Central or South America" is used at 8 U.S.C. 1101(a) (27) (c), in context with "Canada, the Republic of Mexico, the Republic of Cuba, the Republic of Haiti, the Dominican Republic, and the Canal Zone". "Adjacent islands" are enumerated at 8 U.S.C. 1101(b) (5), and the expression recurs at 1182(a) (24), 1228(a) (b) (c) (e), 1251(a) (10), 1253(a), and 1254(a) (5).

For the purpose of determining the quota to which an immigrant is chargeable, the statute sets forth a series of political entities: (8 U.S.C. 1152(a)) "Each independent country, self-governing dominion, mandated territory, and territory under the international trusteeship of the United Nations . . . " (with various exceptions) are among the words used to denominate particular areas. "Inhabited lands" are attributable to a "quota area" specified by the Secretary of State. Ibid.

A geographical expression unique to the Immigration and Nationality Act, "Asia-Pacific triangle" is coined at 8 U.S.C. 1152(b). The words "colony or other component or dependent area of a governing country" appear at 8 U.S.C. 1152(c).

At 8 U.S.C. 1182(a) (28) (c), aliens are made excludable if they are members of the subversive parties of "any State of the United States, or of any foreign state, or of any political or geographical subdivision of any foreign state." This group of political entities is repeated again for purposes of deportation at 8 U.S.C. 1252(a) (6) (c) and for purposes of barring citizenship at 8 U.S.C. 1423(a) (2).

The all-inclusive term "any place outside of the United States" is used at 8 U.S.C. 1221(b), at 1281(a), at 1284(a), (b), 1287, 1323(a), and 1326(a) (2). The phrase "place where any such diseases are prevalent or epidemic" occurs at 8 U.S.C. 1222 along with the word "country".

At 8 U.S.C. 1323(b), the statute provides for certain penalties to be imposed upon transportation companies based upon the cost of travel from the "initial point of departure".

Naturalized citizens are required at 8 U.S.C. 1448 to renounce allegiance to any "foreign prince, potentate, state, or sovereignty of whom or which the petitioner was before a subject or citizen".

In setting forth various grounds upon which citizens may be expatriated the statute refers variously "to a foreign state" "a political subdivision thereof", "foreign territory" and "territory of a foreign state". 8 U.S.C. 1481, 1482, 1484, 1486, 1487.

The statute thus employs a virtual thesaurus of words to denote geographical and political areas.

What is significant here is that within the deportation section itself, 8 U.S.C. 1253, Congress has distinguished between foreign contiguous territories, adjacent islands, countries, and political and territorial subdivisions of countries.

Whatever Formosa may be, it can be no more than a political or territorial subdivision of a country. Appellant's power to deport to such an entity, however, arises solely from the provisions contained in 8 U.S.C. 1253(b). But this section comes into operation only when the United States is at war. Appellant, who concedes (at p. 11) that the deportation here is based on 8 U.S.C. 1253(a) (6), seeks to interpret the word "country" in (a) so broadly that it would include a "political or territorial subdivision" which is mentioned only in (b).

It is a familiar rule, as Justice Holmes said in United States v. Atchison T. & S.F.R. Co., 220 U.S. 37 (1910):

> "The presence of such a provision in the one part and its absence in the other is an argument against reading it as implied * * *. We see no reason to suppose that Congress meant more than it said."

The presence of the phrase "political or territorial subdivision" of a country in 8 U.S.C. 1253(b) and its absence from 8 U.S.C. 1253(a) should foreclose reading it by implication into the section from which it is absent. See also Tom We Shung v. Murff, 176 F. Supp. 253, 258 (S.D.N.Y. 1959).

Appellant has chosen three usages of the terms "country" or "foreign country", from among the many that appear in the statute, to suggest that if the construction of the word adopted by the court below is adopted, there will be "absurd" and incongruous results". (pp. 13-14). It is axiomatic, of course, that the construction of words in a statute must be made in context and in the light of the legislative history. Other usages in the statute are therefore not dispositive of the question of construction here.

As to 8 U.S.C. 1253(a), the section under construction, as appellees have shown above, the legislative history indicates a change from the provisions of the 1917 Act, which would have permitted deportation to a geographical area smaller than a country, namely, to the port of embarkation. In the immediate context of the statutory language, Congress has employed various terms other than "country" to denote other geographical and political entities. In these circumstances there is no warrant for a court to rewrite a statute where the Congress has been so meticulous in its choice of words.

As the 9th Circuit said recently in an exclusion case, United States ex rel. Milanovic v. Murff, 253 F. 2d 941, 944 (1958), "That there may be . . . a statutory anomaly does not seem to us sufficient reason to ignore the plain distinction in the statute".

Nonetheless, it may be observed that most of appellant's examples do not bear analysis. He states that "if Formosa is not a 'country' then no alien from Formosa could be admitted to the United States under the provisions of this Act".

Appellant has overlooked the provisions of two sections of the statute. 8 U.S.C. 1152(d) applies generally:

> "The provisions of an immigration quota for a quota area shall not constitute recognition by the United States of the political transfer of territory from one country to another, or recognition of a government not recognized by the United States."

Thus, regardless whether Formosa has been recognized as a part of the territory of the Republic of China, persons born on that island may be chargeable to the Chinese quota.

The second applies specifically to Chinese. 8 U.S.C. 1151(a) continues in effect Section 11 of the Immigration Act of 1924 (43 Stat. 153, 159). This establishes what is known as the Chinese racial, as distinguished from the geographical, quota, because under its provisions all Chinese aliens, regardless of place of birth, are chargeable to a special quota for "Chinese persons".

Whatever problems the construction of Section 1101(a)(15) (h), (8 U.S.C. 1101(a) (15) (H) may pose, appellant is in error in assuming that a narrow construction of the term "country" in 8 U.S.C. 1253(a) will bar the admission to the United States of aliens from Formosa.

Similarly, the appellant suggests that the Attorney General could not establish Immigration Services offices in Formosa under 8 U.S.C. 1103(a). This function, however, is plainly in implementation of the admission of aliens to the United States, and the power to maintain such offices would carry no more significance than the allocation of visas.

The appellant also errs in stating (at p. 14) that "persons illegally attempting to enter the United States from Formosa . . . could not be excluded since Section 237(a) provides that such an alien 'shall be immediately deported to the country whence he came' ". The answer to this statement is the decision of the Supreme Court in Shaughnessy v. Mezei, 345 U.S. 206. Aliens may be, and have been excluded from the United States, if they are excludable for any reason, regardless of the ability of the United States to deport them.

As to the statement that "Formosans who have illegally entered the United States could not be deported" (p. 14), such aliens are not subject to the exclusion provisions of the statute, as appellant indicates (pp. 5-6). They may therefore, like the appellees, be deported to any one of the categories of countries set forth in 8 U.S.C. 1253(a), or in time of war, to those areas described in 8 U.S.C. 1253(b). It is incorrect, and certainly premature to say that the aliens from Formosa cannot be deported, absent a showing that no country will accept them. Cf. Rogers v. Alfred Dodge Lu, 104 App. D.C. 374, 262 F. 2d 471.

Finally, appellant attempts to derive support for his position from two decisions in other circuits. The decisions which appellant cites do not support him. United States ex rel Moon v. Shaughnessy, 218 F. 2d 316, he says is in conflict with the decision below because the Second Circuit necessarily regarded Formosa as a "country" (App. p. 8). The issue there, however, was not whether deportation could be effected to Formosa. It was whether the alien could be deported to Communist China. The ground raised was that because the United States did not maintain diplomatic relations with the government of that country, it could not communicate with it (sic). A country not recognized by the United States, it was argued, was not one within the terms of the Immigration and Nationality Act. The sole issue decided, therefore, was whether "if communication is impossible, the other nation is . . . to be regarded as a 'country' ". Cf. decision and appellee's brief (No. 14,556) in Rogers v. Lu, 104 U.S. App. D.C. 374, 262 F. 2d 471.

Although the Second Circuit allowed additional time to permit deportation to Formosa, (in an effort to avoid deportation, if possible, to Communist China) no issue as to that island was raised in the case.

The appellant also places heavy reliance upon Delany v. Moraitis, 136 F. 2d 129 (4 Cir., 1943). There the alien, a Greek national who was serving during World War II in the Greek Merchant Marine, was ordered deported to the Greek Government-in-Exile in England, inasmuch as Greece itself was occupied by German forces.

Several observations may be made about this decision. The first is, as the Court below noted (J.A. 34), that the Immigration and Nationality Act of 1952 expressly limited the effect of this decision, rendered during wartime in 1943, to deportation in time of war.

Thus, as stated above, 8 U.S.C. 1253(b) provides:

> "If the United States is at war and the deportation, in accordance with the provisions of subsection (a), of any alien who is deportable under any law of the United States shall be found by the Attorney General to be impracticable, inadvisable, or impossible because of enemy occupation of the country from which the alien came or wherein is located the port at which he embarked for the United States or because of reasons connected with the war, such alien may, in the discretion of the Attorney General, be deported as follows:
>
> (1) If such alien is a citizen or subject of a country whose recognized government is in exile, to the country in which is located that government in exile if that country will permit him to enter its territory; . . ."

The holding in the Moraitis case therefore can have no applicability to a peacetime deportation. Nor can it affect a deportation of a citizen of a country whose recognized government is not in exile. The Republic of China has not been said until now, at least, to be a "government in exile", despite the impression it has apparently made upon the Attorney General.

Moreover, an analysis of the factual situation in Moraitis indicates that it would not compel the deportation of the appellees to Formosa. For to deport the appellees to Formosa is not at all analogous to the deportation of the Greek national to the Greek Government-in-Exile in England. What the appellant proposes rather would be parallel in the Moraitis situation to the deportation of German nationals to Greece because the German government then occupied and exercised authority over that country.

Clearly, an act of this character affecting, as it does, the international relations of the United States, might, in the words of the Court below, "cause embarrassment or complications" (J.A. 33) for the Executive.

To justify such a deportation, in the light of the history of the changes in the deportation provisions of the Immigration and Nationality Act, appellees believe that appellant requires more statutory authority than is reposed in him in 8 U.S.C. 1253(a).

II

DEPORTATION OF THE APPELLEES MUST BE TO A COUNTRY

Appellant's second ground in this Court is that appellees are deportable to Formosa regardless whether it is a country. Two arguments are urged in support of this position.

The first is that the clause (Clause 2 in 8 U.S.C. 1253 (a)) which permits deportation "to the country in which is located the foreign port at which such alien embarked for the United States . . ." permits deportation "not only to the specific foreign port" but also to the country in which it is located. (p. 15).

Appellees note, parenthetically, that this is not the clause which appellant relied upon below to support deportation to Formosa. The stipulation, by its reference to the fact that the "Republic of China has agreed to accept plaintiffs (appellees) into its territory" (J.A. 26), and the Points and Authorities in Support of Defendant's (Appellant's) Motion for Summary Judgment, by its reliance upon the fact of the appellee's political allegiance to the Republic of China, apparently grounded deportation upon the fourth sentence of 8 U.S.C. 1253(a), which reads:

> "Thereupon deportation of such alien shall be directed to any country of which such alien is a subject (,) national, or citizen if such country is willing to accept him into its territory."

Even so, the issue whether Formosa can be the country in which is located the foreign port at which appellees embarked for the United States, is the same question posed by the first ground. No more need be said here as to that argument, except to say that appellant misreads the language in Clause 2 when he suggests that it "permits deportation to the specific foreign port from which the alien embarked to the United States". The tools of grammar provide other means for uttering that thought.

Appellant's second argument is drawn from a misapplication of the language in Clause 7 of 8 U.S.C. 1253(a). That clause states:

> "if deportation to any of the foregoing places or countries is impracticable . . . then to any country which is willing to accept such alien into its territory."

Appellant suggests that the term "places" there reads out of the Act any requirement that deportation be made to a country.

A reading of the entire section, however, does not bear out appellant's contention. The word "place" is used earlier in the identical section as follows:

> ". . . Nor shall any alien designate, as the place to which he wishes to be deported, any foreign territory contiguous to the United States or any island adjacent thereto or adjacent to the United States unless such alien is a native, citizen, subject or national of, or had a residence in such designated foreign contiguous territory or adjacent island."

In this context, therefore, the word "places" in Section 7(a) must refer to the "contiguous territory or adjacent places" described in the first paragraph of that section. The reason for this is clear. A subject of the United Kingdom who is from England or Scotland might otherwise arrange for his deportation to islands in the British West Indies and various islands and places adjacent to the United States. 8 U.S.C. 1253(a) bars such deportation. 8 U.S.C. 1253(a) (7) refers back to such "places" because they obviously are not "countries" within the meaning of the Act any more than Formosa is a country.

"An alien who comes from Trinidad", however, contrary to the statement of appellant (p. 17), can be deported to that island, precisely because Section 8 U.S.C. 1253(a), at its second sentence, expressly provides that if he is a "native subject or national of, or had a residence in such designated foreign contiguous territory or adjacent island", he may designate it as the "place to which he wishes to be deported". (Emphasis supplied). At 8 U.S.C. 1101(b) (5), Trinidad is included in the enumeration of "adjacent islands".

Congress has explicitly and clearly chosen its words to include "places" as covering "adjacent islands" and "foreign contiguous territory". In view of both the context of those terms, the differentiation throughout the statute between "countries", "foreign states", "political or territorial subdivisions", and other related expressions, it would be inappropriate for the court to reword the statute in order to supply what the appellant conceives to be its intendment.

Even if there were ambiguity, the provisions here are in aid of deportation. The rule of statutory construction for such legislation, it is well settled, is to adopt the "narrowest of several possible meanings". Fong Haw Tan v. Phelan, 333 U.S. 6, 10. The use of this rule of construction precludes any holding that the term 'country' includes 'places', or 'political or territorial subdivisions'.

CONCLUSION

For the reasons developed above, appellees believe that the holding of the court below should be affirmed.

Respectfully submitted,

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APPENDIX

STATUTES INVOLVED

Title 8 United States Code, 1253(a) and (b) provides:

> Countries to which aliens shall be deported — (a) Acceptance by designated country; deportation upon nonacceptance by country.
>
> The deportation of an alien in the United States provided for in this chapter, or any other Act or treaty, shall be directed by the Attorney General to a country promptly designated by the alien if that country is willing to accept him into its territory, unless the Attorney General, in his discretion, concludes that deportation to such country would be prejudicial to the interests of the United States. No alien shall be permitted to make more than one such designation, nor shall any alien designate, as the place to which he wishes to be deported, any foreign territory contiguous to the United States or any island adjacent thereto or adjacent to the United States unless such alien is a native, citizen, subject, or national or, had a residence in such designated foreign contiguous territory or adjacent island. If the government of the country designated by the alien fails finally to advise the Attorney General within three months following original inquiry whether that government will or will not accept such alien into its territory, such designation may thereafter be disregarded. Thereupon deportation of such alien shall be directed to any country of which such alien is a subject national, or citizen if such country is willing to accept him into its territory. If the government of such country fails finally to advise the Attorney General or the alien within three months following the date of original inquiry, or within such other period as the Attorney General shall deem reasonable under the circumstances in a particular case, whether that government will or will not accept such alien into its territory, then such deportation shall be directed by the Attorney General within his discretion and without necessarily giving any priority or preference because of their order as herein set forth either —

(1) to the country from which such alien last entered the United States;

(2) to the country in which is located the foreign port at which such alien embarked for the United States or for foreign contiguous territory;

(3) to the country in which he was born;

(4) to the country in which the place of his birth is situated at the time he is ordered deported;

(5) to any country in which he resided prior to entering the country from which he entered the United States;

(6) to the country which had sovereignty over the birthplace of the alien at the time of his birth; or

(7) if deportation to any of the foregoing places or countries is impracticable, inadvisable, or impossible, then to any country which is willing to accept such alien into its territory.

(b) Deportation during war.

If the United States is at war and the deportation, in accordance with the provisions of subsection (a) of this section, of any alien who is deportable under any law of the United States shall be found by the Attorney General to be impracticable, inadvisable, inconvenient, or impossible because of enemy occupation of the country from which such alien came or wherein is located the foreign port at which he embarked for the United States or because of reasons connected with the war, such alien may, in the discretion of the Attorney General, be deported as follows:

(1) if such alien is a citizen or subject of a country whose recognized government is in exile, to the country in which is located that government in exile if that country will permit him to enter its territory; or

(2) if such alien is a citizen or subject of a country whose recognized government is not in exile, then to a country or any political or territorial subdivision thereof which is proximate to the country of which the alien is a citizen or subject, or, with the consent of the country of which the alien is a citizen or subject, to any other country.